

UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF FLORIDA
www.flsb.uscourts.gov

**GUIDELINES FOR COMPENSATION FOR
PROFESSIONAL SERVICES OR REIMBURSEMENT
OF EXPENSES BY ATTORNEYS FOR CHAPTER 13 DEBTORS**

I. Applicability.

These guidelines govern compensation under 11 U.S.C. § 330(a)(4)(B) to a debtor's attorney for representing the interests of the debtor in connection with a chapter 13 bankruptcy case. These guidelines apply in all chapter 13 bankruptcy cases in the Southern District of Florida, regardless of whether the debtor or a third party will be paying the debtor's attorney's compensation, and regardless of whether the chapter 13 case is filed by an individual debtor or by joint debtors. Nothing in these guidelines, however, abrogates any requirement of the Bankruptcy Code, Federal Rules of Bankruptcy Procedure, Local Rules, or any order authorizing payment of a filing fee in installments.

II. General Rule.

Except as set forth in section III, an attorney seeking compensation under 11 U.S.C. § 330(a)(4)(B) for representing the interests of the debtor or seeking reimbursement for actual, necessary expenses in connection with a chapter 13 bankruptcy case must file local form *Application for Compensation for Professional Services or Reimbursement of Expenses by Attorney for Chapter 13 Debtor* by the deadlines set forth in Local Rule 2016-1(d).

III. Presumptively Reasonable Compensation and Expenses Allowed Without Application.

- A. Presumptively Reasonable Compensation and Expenses. Unless an order authorizing the chapter 13 trustee to disburse pre-confirmation payments to administrative, secured, and priority creditors (a vesting order) has been entered, a base fee of up to \$5,000.00 per case, plus up to \$200.00 in estimated expenses per case, for an attorney for a chapter 13 debtor is presumptively reasonable and is allowed without filing an application for compensation.
- B. Services Included in Presumptively Reasonable Fee: This presumptively reasonable fee must include, at a minimum, the following services:
 - 1. verifying the debtor's identity, social security number, and eligibility for chapter 13;

2. explaining to debtors their responsibilities, including to comply with the debtor's duties under 11 U.S.C. § 521, to make the payments required by 11 U.S.C. § 1326, and to attend the § 341 meeting of creditors;
3. timely preparing and filing:
 - (a) the petition;
 - (b) the lists of names and addresses required by Fed. R. Bankr. P. 1007(a)(1);
 - (c) the schedules, statements, and other documents required by Fed. R. Bankr. P. 1007(b)(1), (b)(3), and (b)(6);
 - (d) a chapter 13 plan as required by Fed. R. Bankr. P. 3015, 3015.1, and Local Rule 3015.1-1;
 - (e) any other documents required by the Bankruptcy Code, Federal Rules of Bankruptcy Procedure, and Local Rules; and
 - (f) all required amendments to the foregoing documents;
4. timely serving on all creditors copies of all filed plans;
5. preparing for, attending with the debtor, and representing the debtor's interests at, the § 341 meeting of creditors;
6. preparing for, attending, and representing the debtor's interests at all hearings in the debtor's case in which the debtor has an interest (including the confirmation hearing), from the commencement of the case until a discharge is granted under 11 U.S.C. § 1328 or the case is dismissed or converted under 11 U.S.C. § 1307;
7. timely reviewing all filed claims as required by Local Rule 4002-2(a) and filing the notice of compliance as required by Local Rule 4002-2(b);
8. timely objecting to all objectionable proofs of claim;
9. preparing, filing, and serving on all creditors any notice of conversion or notice of voluntary dismissal; and

10. preparing, filing, and serving a motion under Fed. R. Bankr. P. 3002.1(g)(4) to determine whether the debtor has cured all defaults and paid all required postpetition amounts.

C. Additional Services. An attorney for a chapter 13 debtor may also – if the retainer agreement permits – charge the debtor without filing an application for compensation up to the following amounts for the following services, plus up to \$50.00 in related expenses, upon filing and serving on the debtor an amended disclosure of compensation under Fed. R. Bankr. P. 2016(b):

1. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 362(c)(3)(B) for continuation of the automatic stay or under 11 U.S.C. § 362(c)(4)(B) to order the stay to take effect;
2. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 506(a) and Fed. R. Bankr. P. 3012 to value collateral and determine the amount of a claim secured by a lien on a motor vehicle, a mobile home, or a manufactured home;
3. \$1,000.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 506(a) and Fed. R. Bankr. P. 3012 to value collateral and determine the amount of a claim secured by a lien on real property;
4. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 1325(a)(5)(B) to determine the interest rate on an allowed secured claim provided for by the plan;
5. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 522(f), Fed. R. Bankr. P. 4003(d), and Local Rule 4003-2, to avoid a lien or other transfer of exempt property;
6. \$750.00 for representing the debtor with respect to a home mortgage loan modification other than through the Court's Mortgage Modification Mediation program;
7. \$750.00 for preparing, filing, serving, and prosecuting a motion for authority to purchase, sell, or refinance real property;
8. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 1329 to modify a plan after confirmation;

9. \$750.00 for preparing, filing, serving, and prosecuting a motion under 11 U.S.C. § 1328(b) for entry of a discharge before completion of plan payments; and
 10. \$750.00 for preparing, filing, serving, and prosecuting a motion under Fed. R. Bankr. P. 9024 and Fed. R. Civ. P. 60(b) for relief from a dismissal order or under Fed. R. Bankr. P. 9023 and Fed. R. Civ. P. 59(e) to alter or amend a dismissal order.
- D. Additional Expenses. An attorney for a chapter 13 debtor may also – if the retainer agreement permits – seek reimbursement from the debtor without filing an application for reimbursement of expenses, up to the following amounts for the following expenses:
1. up to \$125.00 for actual court reporter fees incurred;
 2. up to \$75.00 for actual interpreter fees incurred; and
 3. up to \$75.00 for actual credit report retrieval fees incurred.
- E. Compensation Allowed Upon Dismissal or Conversion Before Confirmation. Unless an order authorizing the chapter 13 trustee to disburse pre-confirmation payments to administrative, secured, and priority creditors (a vesting order) has been entered, if a case is dismissed or converted before confirmation, an attorney for a chapter 13 debtor may – if the retainer agreement permits – request and receive from pre-confirmation payments made to the chapter 13 trustee up to \$2,500.00, less any amounts previously received, for representing the interests of the debtor, without filing an application for compensation.

###